

Aderrig Green Parking Policy

Proposal

The objective of this policy is to establish clear, mandatory and enforceable rules to ensure organisation, safety, fairness among residents and proper use of common areas of the development.

This policy is designed to ensure:

- Orderly and consistent use of parking
- Safe and unobstructed circulation
- Fair access for all residents
- Proper use of designated spaces

All parking within the Aderrig Green development is subject to this policy.

1.1 General Principle

All parking spaces within the development are subject to orderly regulation. However, this policy explicitly recognizes and protects the contractual, exclusive rights of use granted to specific residential units under Clause 65 of the Sales Deed. The Management Company retains the right to amend, update and enforce this policy for the purpose of safety and fair administration, subject to the provisions of the Sales Deed.

No vehicle may be parked outside the conditions defined in this policy.

Where a parking management system is implemented, vehicles may be required to be registered in accordance with the procedures operated by the appointed car parking management company responsible for the administration and enforcement of parking within the development.

1.2 Allocation of Spaces

Allocated spaces are for the exclusive use of the assigned residential unit and vehicles authorised by that unit. A resident shall not park their vehicle in a space other than allocated.

No other vehicle may occupy an allocated space without explicit authorisation.

1.3 Prohibition of Space Appropriation

The following actions are strictly prohibited:

- Informal reservation of parking spaces by any means.
- Exclusive use of non-allocated (common) spaces.

- No person may reserve, obstruct or restrict access to any common parking space through the use of cones, barriers, signage or other objects.
- Advertising, selling, or representing common parking spaces (visitors and EV charging spaces) as private parking space or asset.
- Residents retain the right to authorise the use of their allocated parking space by occupiers, visitors, guests, family members, carers, tenants or other persons of their choosing. The resident or owner of the associated residential unit shall remain responsible for ensuring compliance with this Parking Policy by any person using the allocated space on their behalf.

1.4 Use of Visitor Spaces

Visitor and EV charging spaces are common-use facilities intended for genuine short-term use only. They must not be regarded or used as an extension of any resident's allocated parking entitlement or as a permanent, recurring or alternative parking arrangement.

Visitor spaces may not be reserved, blocked or otherwise occupied in a manner that restricts their availability to other users.

Common parking spaces may be subject to prior registration or time restrictions.

These spaces must remain available for residents and visitors requiring temporary access and shall be managed, monitored and enforced in accordance with the procedures and signage operated by the appointed car parking management company.

1.5 Accessible Spaces

Accessible spaces are strictly reserved for vehicles displaying a valid disability parking permit, which must remain visible at all times. Unauthorised use may result in enforcement action without prior warning.

1.6 Electric Charging Spaces (EV)

In accordance with the development's planning permission, designated EV charging bays are dual-use infrastructure intended to serve both electric vehicle charging and general visitor parking. To ensure fair rotation and prevent the obstruction of charging facilities, the following rules apply:

- **Active EV Charging Priority:** While these spaces are dual-use, priority is given to electric vehicles actively plugged in and utilizing the charging infrastructure.
- **Maximum Stay Limits:** To prevent long-term storage or space hogging, a maximum stay time-limit applies to all vehicles using these spaces, whether they are a visitor's combustion vehicle or a resident's/visitor's EV.
- **Post-Charging Egress:** Once an EV has completed its active charging cycle, the vehicle must be removed promptly to allow access for other users. Remaining parked while not actively drawing a charge beyond the permitted time limits will be deemed a violation.

- Enforcement: Non-EV vehicles or EVs left disconnected/not actively charging beyond the posted visitor time limits will be subject to Contractual Parking Charge Notices (PCNs) or clamping in line with Section 1.10.

1.7 General Parking Rules

It is strictly prohibited:

- Parking outside marked or designated spaces.
- Parking on internal roads or circulation routes.
- Parking on footpaths or pedestrian areas.
- Parking in front of/or obstructing any parking space.
- Parking in a manner that exceeds the boundaries of a marked space.
- Blocking access points or entrances in a manner that may impede any access or circulation to the development.
- Parking in areas marked with double yellow lines at any time.
- Parking in a manner that restricts visibility or safe manoeuvring.
- Parking of construction, heavy commercial vehicles, boats, caravans, trailers, or oversized vehicles is prohibited without exception to all common areas, visitor bays, and estate thoroughfares.

Any vehicle parked in violation of the above may be subject to immediate enforcement.

1.8 Residences without Designated Space

Units without a designated space shall follow the guidance in this policy.

Units without an allocated parking space are not entitled to permanently use common parking spaces and areas within the development.

Visitors and EV charging spaces shall not be used as a permanent, recurring or alternative parking arrangement.

Any occasional use of common parking must comply with general rules and available capacity. Please note all parking spaces within the development may be managed and monitored in accordance with the procedures operated by the appointed car parking management company to ensure fair and equitable access for all users.

Where parking is required, residents are directed to park in the parking spaces intended for public use available throughout the estate on public roads.

Please refer to section 1.7 of this policy for further and clear limitations.

1.9 Vehicle Registration and Identification

Vehicle registration and identification requirements shall be administered in accordance with the applicable parking management procedures. The system may include physical identification (e.g., permit/sticker), digital registration, verification capability, and assignment to a specific space where applicable. Registration of the vehicle will be integrated with the appointed car parking monitoring company's system.

Data Protection (GDPR): All personal data, vehicle registration details, and monitoring logs collected under this policy will be processed in strict compliance with the Data Protection Acts 1988–2018 and GDPR guidelines. Data processing will be conducted in alignment with the privacy policies and secure data handling systems operated by the appointed car parking management company.

1.10 Enforcement and Penalties

An active enforcement system will be implemented.

Penalties will be implemented progressively with:

- Initial warning (where applicable under operator terms);
- Contractual Parking Charge Notice (PCN) in accordance with the prominently displayed terms of the appointed car parking management company;
- Immobilisation (clamping) and/or relocation (towing) in strict compliance with the Vehicle Clamping Act 2015 and the National Transport Authority (NTA) Regulations.

The following principles apply:

- Enforcement is consistent and without exception.
- Repeated breaches will escalate in severity.
- Serious violations may result in immediate enforcement action without warning.

The enforcement system implemented will be in line with the appointed car parking monitoring company's system.

Statutory Signage: No enforcement via clamping or contractual charging will take place until the estate has been fitted with warning signage that meets the physical dimensions, visibility, and wording requirements mandated by the Vehicle Clamping and Signage Regulations.

Appeals Process: In accordance with Irish legislation, any motorist subjected to enforcement has the right to a two-stage appeals process. The first stage must be directed to the appointed parking operator within 60 days. If unsatisfied, the motorist retains a statutory right to appeal to the Independent Clamping Appeals Officer designated by the NTA.

1.11 Additional Provisions

1.11.1 Abandoned Vehicles

Abandoned, derelict or apparently unused vehicles may not be left within the common parking areas of the development for extended periods of time. Vehicles parked within allocated spaces remain the responsibility of the relevant unit owner or occupier. Concerns regarding potentially abandoned vehicles should be reported to the appointed parking management operator. Appropriate action may be taken where a vehicle presents a safety risk, environmental concern, nuisance or potential breach of applicable legislation.

1.11.2 Multiple Vehicles per Unit

Registration of multiple vehicles does not guarantee the availability of multiple parking spaces. Priority applies only to allocated spaces where applicable.

1.11.3 Contractors and Temporary Vehicles

Contractors and temporary vehicles must comply with all parking rules, signage and applicable parking management procedures in force within the development.

1.11.4 Liability

Vehicles are parked within the development entirely at the owner's risk.

The Management Company accepts no liability for any damage, theft or loss involving vehicles parked within the development.

1.11.5 Policy Amendments and Discretion

The Directors of the Management Company reserve the right to alter the terms, permit caps, and visitor space time-limits from time to time to address changing capacity needs of the estate, provided such changes do not infringe upon the core rights granted under the Sales Deeds.

The purpose of this Policy is to support fair, safe and respectful use of shared parking facilities. By following these guidelines, we can help maintain an organised community where residents are treated equally and common spaces remain available for their intended use.